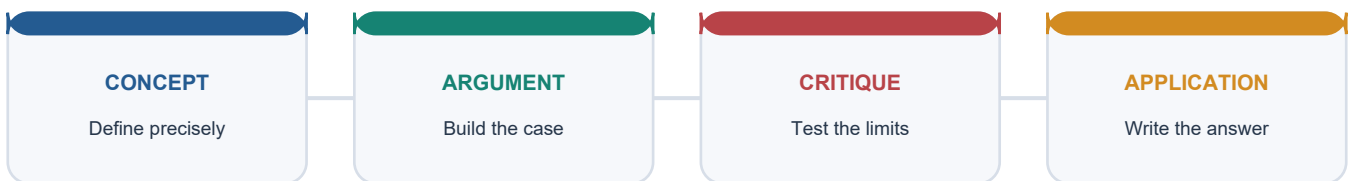


COMPLETE LEARNING SESSION

Polity 14 - Emergency Provisions - Complete Learning Session

Constitutional thresholds, procedure, rights, federal effects and safeguards

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Complete Learning Session - Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 14 - Emergency Provisions - Complete Topic Package

Subject: Indian Polity | **GS-II and Prelims** | **Current control:** 7 September 2026 **Evidence labels:** [FACT] constitutional, judicial or source-verified proposition; [ANALYSIS] reasoned synthesis; [CURRENT] dated operative status; [LIMIT] boundary preventing overstatement.

Source and boundary control

- Mandatory source order followed: canonical Basic owner; Advanced owner; complete canonical package; syllabus, answer-worthiness and routed PYQ ledgers; OCR-searchable local polity books; Constitution, amendment texts, official judgments and Gazette; Qdrant not required.
- Core teaching below is independently answer-complete. Optional Advanced depth is separately labelled and not required for a core answer.
- Exact constitutional language prevails over textbook shorthand. Actual practice is not inferred from theoretical power.
- Topic 13 relation-level material and Topic 15 President-office material remain bounded rather than duplicated.

Learning roadmap

1. classify the three emergencies;
2. master Article 352 threshold, territory, procedure, history, review and effects;
3. distinguish Articles 358 and 359 and trace the liberty correction;
4. separate Articles 355, 365 and 356;
5. master President's Rule procedure, effects and *Bommai*;
6. explain misuse, commissions and decline;
7. master Article 360 and ordinary fiscal alternatives;
8. practise 32 MCQs, six routed PYQs and six marks-scaled Mains models;
9. finish with optional depth and consolidated register notes.

BASIC LEARNING SESSION

SESSION 1 - CONSTITUTIONAL PURPOSE AND THE THREE-EMERGENCY MAP

DEFINITION

Part XVIII creates three separate constitutional crisis regimes: National Emergency under Article 352, President's Rule under Article 356, and Financial Emergency under Article 360.

VISUAL FIRST

CRISIS IDENTIFIED

```
|
+-- security of India / part threatened by war, external aggression,
|   or armed rebellion -----> ARTICLE 352
|
+-- State government cannot be carried on according
|   to the Constitution -----> ARTICLE 356
|
+-- financial stability or credit of India / part
|   threatened -----> ARTICLE 360
```

COMMON PURPOSE: preserve constitutional government.

COMMON LIMIT: exceptional power remains text-bound, reviewable and temporary in purpose.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Emergency provisions are constitutional self-defence, not permission to replace constitutional government with executive necessity.

MUST-WRITE KEYWORDS

Part XVIII; Articles 352-360; constitutional self-defence; exceptional power; federal shift; restoration of normal government

CORE TEACHING

- [FACT] Part XVIII runs from Articles 352 to 360. Articles 353-354 state effects of a National Emergency; Article 355 states a Union duty; Articles 356-357 govern constitutional machinery failure; Articles 358-359 govern specified rights consequences; Article 360 governs Financial Emergency.
- [FACT] The three regimes do not share a common trigger, approval majority, duration or institutional effect. Classification must precede legal analysis.
- [ANALYSIS] Emergency provisions can temporarily make the working Constitution more Union-weighted, but States and the Constitution do not disappear. The democratic test is whether exceptional authority is used to restore ordinary constitutional government.
- [LIMIT] 'State Emergency' and 'Constitutional Emergency' are textbook descriptions for Article 356, not additional constitutional categories.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Part XVIII preserves constitutional order through differentiated crisis powers. **Named evidence:** Articles 352, 356 and 360 respond respectively to grave security threat, State constitutional breakdown and threatened financial stability or credit. **Analysis:** separate triggers prevent a security event, political dispute or fiscal difficulty from being converted into whichever emergency is administratively convenient. **Qualification:** even a correctly classified crisis must independently satisfy approval, duration, rights and review safeguards.

EVIDENCE UNIT

Constitution of India, Part XVIII; local Laxmikant emergency chapter, PDF pages 347-363.

PRELIMS TRAP

The word 'emergency' does not make Articles 352, 356 and 360 interchangeable.

MAINS USE

Use this classification as the introduction to any federalism, liberty or emergency-safeguard answer.

MINI RECAP

Classify the crisis -> identify the Article -> test trigger -> procedure -> effects -> safeguards -> exit.

SESSION 2 - ARTICLE 352 THRESHOLD, GROUNDS AND TERRITORIAL APPLICATION

DEFINITION

Article 352 authorises a proclamation only when the President is satisfied that a grave emergency exists whereby the security of India or any part of its territory is threatened by war, external aggression or armed rebellion.

VISUAL FIRST

CONSTITUTIONAL SATISFACTION

```
|
+-- grave emergency exists
|
+-- "security of India or any part of the territory thereof" threatened
|
+-- CAUSAL GROUND: war / external aggression / armed rebellion
|
+-- actual occurrence OR imminent danger before occurrence
|
+-- proclamation may specify WHOLE INDIA or A SPECIFIED PART
```

NO TEXTUAL MINIMUM TERRITORIAL UNIT: the specified part need not equal a whole State.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Article 352 is activated by a constitutionally characterised threat to security, not by the geographical size or publicity of an attack alone.

MUST-WRITE KEYWORDS

grave emergency; security of India or any part of the territory thereof; war; external aggression; armed rebellion; imminent danger; specified part

CORE TEACHING

- [FACT] The exact threshold is a grave emergency whereby the 'security of India or any part of the territory thereof' is threatened by one of three grounds: war, external aggression or armed rebellion.
- [FACT] The Explanation permits proclamation before the actual occurrence of war, aggression or rebellion if imminent danger exists. Imminent danger changes timing; it does not create a fourth substantive ground.
- [FACT] Since the 42nd Amendment, the proclamation may operate throughout India or in the part specified. The Constitution states no State-only floor and no minimum territorial size; the legally relevant unit is the specified part of Indian territory.
- [LIMIT] External aggression and terrorism are not automatic synonyms. A terrorist attack with cross-border sponsorship may raise an external-aggression question, but Article 352 still requires the constitutional satisfaction that the security threshold is met.
- [APPLICATION] The 2008 Mumbai attacks affected one city/part and were handled through ordinary criminal, security and counter-terrorism institutions; no Article 352 proclamation followed. Their location did not mechanically invoke Article 356, because Article 356 asks whether Maharashtra's constitutional government could no longer be carried on. If a localised external attack ever met Article 352's grave-security threshold, Article 352 would be the legally relevant emergency category, while ordinary law may still be sufficient in practice.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: territorial concentration does not convert an external security attack into State constitutional failure. **Named evidence:** Article 352 expressly covers security of 'any part of the territory' and permits a proclamation for a specified part, whereas Article 356 requires inability to carry on State government according to the Constitution. **Analysis:** the Constitution classifies by the nature and threshold of the failure, not by whether only one State is affected.

Qualification: a cross-border or terrorist dimension does not automatically equal external aggression, and ordinary security law may adequately meet the event.

EVIDENCE UNIT

Constitution of India, Article 352(1) and Explanation; 42nd Amendment section 48; actual 2008 practice involved no National Emergency proclamation.

PRELIMS TRAP

Never write that a one-State attack must trigger Article 356, or that terrorism automatically constitutes external aggression.

MAINS USE

This resolves scenario questions by separating territorial scope, legal category and actual governmental choice.

MINI RECAP

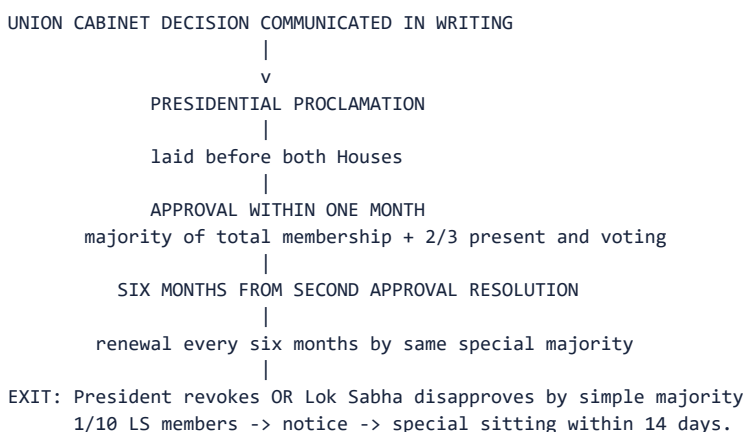
Ground + grave security threshold + actual/imminent timing + whole/specified territory; no invented State-size minimum.

SESSION 3 - ARTICLE 352 INITIATION, APPROVAL, RENEWAL AND EXIT

DEFINITION

A National Emergency moves from written Union Cabinet decision to presidential proclamation, one-month special-majority approval, recurring six-month renewal and constitutionally defined revocation.

VISUAL FIRST



The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Post-44th Article 352 replaces unilateral executive continuation with written collective initiation and recurrent parliamentary legitimacy.

MUST-WRITE KEYWORDS

Union Cabinet in writing; proclamation; one month; special majority; six-month renewal; one-tenth notice; fourteen days; revocation

CORE TEACHING

- [FACT] Article 352(3) defines the Union Cabinet for this purpose as the Prime Minister and other Cabinet-rank ministers appointed under Article 75. The Cabinet decision, including a decision to vary a proclamation, must be communicated to the President in writing.
- [FACT] A non-revoking proclamation ceases after one month unless both Houses approve it. Each resolution requires a majority of the total membership and not less than two-thirds of members present and voting.
- [FACT] After approval, the period runs for six months from the second approving resolution. Both Houses may renew it repeatedly for further six-month periods; the Constitution prescribes no overall maximum.

- [FACT] If Lok Sabha is dissolved, Rajya Sabha approval can preserve the proclamation or continuance only until thirty days after the reconstituted Lok Sabha first sits, unless that House approves within the period.
- [FACT] The President may vary or revoke by later proclamation. Additionally, Lok Sabha disapproval requires revocation. One-tenth of its total membership may submit written notice and obtain a special sitting within fourteen days.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Article 352 cannot lawfully continue on executive preference alone. **Named evidence:** Article 352(3)-(8) requires written Cabinet communication, approval within one month by a dual special majority, six-month renewals and a one-tenth-member Lok Sabha disapproval route. **Analysis:** each stage checks a different risk - personalised initiation, weak legislative consent, indefinite inertia and blocked opposition scrutiny. **Qualification:** repeated valid renewals can still continue without a fixed outer limit, so political accountability remains indispensable.

EVIDENCE UNIT

Constitution of India, Article 352(2)-(8), as substituted by the 44th Amendment with effect from 20 June 1979.

PRELIMS TRAP

Do not import the two-month/simple-majority rules of Articles 356 and 360 into Article 352.

MAINS USE

Present the safeguards chronologically; define both limbs of the special majority.

MINI RECAP

Written Cabinet -> President -> both Houses within one month -> six-month special-majority renewals -> presidential or Lok Sabha-forced exit.

SESSION 4 - ORIGIN, 1962-1977 EXPERIENCE AND THE 38TH-42ND-44TH AMENDMENT ARC

DEFINITION

The present emergency Constitution emerged through three National Emergency proclamations and an amendment cycle that first insulated and expanded emergency power, then constrained it after the 1975-77 experience.

VISUAL FIRST

26 OCT 1962 -----	10 JAN 1968
external aggression (China/NEFA)	revoked

3 DEC 1971 -----	27 MAR 1977
external aggression (Pakistan)	revoked

+-- 25 JUN 1975 -----	21 MAR 1977
internal disturbance	revoked

1975: 38TH -> finality / non-justiciability clauses

1976: 42ND -> specified-part proclamation + wider connected-territory effects

1978/1979: 44TH -> armed rebellion, written Cabinet, one month,
special majority, LS exit, 20/21 shield, review restored.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

The 1975-77 Emergency is the causal bridge between the Constitution's original crisis power and its modern safeguard architecture.

MUST-WRITE KEYWORDS

26 October 1962; 3 December 1971; 25 June 1975; 21 March 1977; 27 March 1977; 38th Amendment; 42nd Amendment; 44th Amendment; Shah Commission

CORE TEACHING

- [FACT] The 1962 proclamation was issued on 26 October on external-aggression grounds during the China conflict and revoked on 10 January 1968; it therefore also covered the 1965 war.
- [FACT] The 1971 external-aggression proclamation was issued on 3 December and revoked on 27 March 1977. While it remained operative, a separate proclamation was issued on 25 June 1975 on the then ground of internal disturbance and revoked on 21 March 1977.
- [FACT] The 38th Amendment inserted final-and-conclusive clauses seeking to exclude judicial review of presidential satisfaction under Articles 352, 356 and 360.
- [FACT] The 42nd Amendment enabled a proclamation for the whole or a specified part, extended connected executive/legislative effects beyond the proclaimed area where security was threatened by related activities, and lengthened the normal Lok Sabha and Assembly terms from five to six years.
- [FACT] The 44th Amendment replaced internal disturbance with armed rebellion, required written Cabinet decision, shortened approval to one month, introduced special majority and Lok Sabha disapproval, narrowed Article 358, protected Articles 20 and 21, removed the 38th Amendment finality clauses, and restored the normal legislative term to five years.
- [FACT] The 1975-77 period involved concentrated executive power, censorship, preventive detention and denial of an effective habeas route under the then Article 359 order. The Shah Commission did not justify the 1975 declaration.
- [ANALYSIS] The Shah Commission's findings and democratic rejection of the 1975 regime shaped the political case for the 44th Amendment safeguards.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: the 44th Amendment is a targeted constitutional response to identifiable 1975 vulnerabilities. **Named evidence:** the 38th Amendment attempted finality, the 42nd broadened territorial operation, and the 44th substituted armed rebellion, Cabinet writing, special-majority renewal and a permanent Articles 20-21 shield. **Analysis:** the sequence shows constitutional learning rather than simple expansion or contraction of Union power. **Qualification:** safeguards reduce the known pathways of abuse but cannot substitute for independent Parliament, courts, media and opposition.

EVIDENCE UNIT

Official constitutional footnotes and amendment texts; MHA Annual Report 1977-78 confirms separate 21 March 1977 and 27 March 1977 revocations; local polity book confirms grounds and overlap.

PRELIMS TRAP

Do not say all three proclamations were simultaneous or that the 1975 proclamation used 'armed rebellion'.

MAINS USE

Use the timeline to explain why each post-1975 safeguard exists.

MINI RECAP

1962 external -> 1971 external -> 1975 internal disturbance -> 38th insulation -> 42nd expansion -> 44th democratic repair.

SESSION 5 - JUDICIAL REVIEW OF A NATIONAL EMERGENCY

DEFINITION

Judicial review tests whether Article 352's constitutional conditions and limits exist; it does not authorise courts to replace the executive's security assessment merely because another view is possible.

VISUAL FIRST

PRE-38TH TEXT: constitutional power ordinarily reviewable within legal limits

38TH AMENDMENT: clause 352(5) says satisfaction final / conclusive

MINERVA MILLS (1980):

political colour != judicial hands-off

review if satisfaction is mala fide, absurd/perverse, or based wholly on extraneous and irrelevant grounds

court does NOT decide whether evidence was sufficient on the merits

44TH AMENDMENT: finality clause removed from current text

CURRENT POSITION: legality, material relevance, purpose and constitutional limits reviewable; no merits substitution.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Review of Article 352 polices the existence and legality of constitutional satisfaction, not the court's preferred national-security policy.

MUST-WRITE KEYWORDS

judicial review; condition precedent; mala fides; wholly extraneous grounds; irrelevant material; perversity; constitutional limits; no merits substitution

CORE TEACHING

- [FACT] Article 352 requires presidential satisfaction that a grave emergency exists and that the prescribed security threat is caused by a constitutionally named ground; this is a condition precedent.
- [FACT] The 38th Amendment attempted to make satisfaction final and non-justiciable. The 44th Amendment removed that clause.
- [FACT] In *Minerva Mills v Union of India* (1980), the Supreme Court rejected total judicial hands-off. It stated that mala fide satisfaction, or satisfaction based on wholly extraneous and irrelevant grounds, would amount to no constitutional satisfaction; it also referred to absurd or perverse satisfaction.
- [LIMIT] *Minerva Mills* simultaneously warned against deciding whether the material was sufficient or entering the political thicket. Review remains directed to legality, relevance, bad faith and constitutional boundaries, not a judicial re-performance of the security assessment.
- [ANALYSIS] Parliamentary approval is an additional safeguard, not a substitute for review where a constitutional condition precedent is absent.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Article 352 satisfaction is reviewable but not freely appealable on the merits. **Named evidence:** *Minerva Mills* treated mala fides and wholly extraneous or irrelevant grounds as absence of the constitutionally required satisfaction, while cautioning courts against weighing sufficiency. **Analysis:** this preserves both executive capacity to assess fast-moving threats and judicial duty to enforce the legal boundary of power. **Qualification:** a challenger needs cogent material; political disagreement alone does not establish constitutional invalidity.

EVIDENCE UNIT

Minerva Mills Ltd. v Union of India, official Supreme Court PDF, 31 July 1980, especially the Article 352 discussion at reported pages 308-312.

PRELIMS TRAP

Do not claim that courts may substitute their preferred security judgment whenever they disagree with the Cabinet.

MAINS USE

Use 'limited but real judicial review' and identify the exact review grounds.

MINI RECAP

Condition precedent -> relevant constitutional material -> bad-faith/extraneous-ground review -> no sufficiency re-weighing.

SESSION 6 - ARTICLE 353 EXECUTIVE AND LEGISLATIVE FEDERAL SHIFT

DEFINITION

While Article 352 operates, Article 353 expands Union directions and Parliament's competence without suspending State governments or legislatures.

VISUAL FIRST

NORMAL FEDERAL POSITION		DURING ARTICLE 352
State executive autonomy	--->	Union may direct manner of exercise
State List primarily State	--->	Parliament gains State-field competence
State institutions continue	--->	overlapping / Union-dominant operation

PARTIAL-TERRITORY PROCLAMATION

emergency area ---- related activities threaten security elsewhere

|

+--> Article 353 effects may extend to another State
only "if and in so far as" the security link exists.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Article 353 changes the working balance of federal power while retaining State constitutional identity.

MUST-WRITE KEYWORDS

Article 353; Union directions; State executive power; Parliament; State List; Article 250; if and in so far as; connected activities

CORE TEACHING

- [FACT] Article 353(a) extends Union executive power to directions to any State on the manner in which its executive power is exercised.
- [FACT] Article 353(b) expands Parliament's law-making power and permits conferral of powers or duties on Union officers even regarding matters outside the Union List. Article 250 separately states Parliament's State List competence during the Emergency.
- [FACT] State governments and legislatures continue. National Emergency therefore differs from Article 356, where the State ministry may be dismissed and legislative power becomes exercisable by or under Parliament.
- [FACT] If the proclamation operates only in part of India, Article 353's proviso allows effects in another State only if and in so far as security is threatened by activities in or related to the proclaimed area.
- [FACT] Article 250 laws cease to have effect, to the extent Parliament would lack competence, six months after the Emergency ends; completed acts remain unaffected.
- [FACT] Because Parliament temporarily has State-field competence, the President may use Article 123 ordinance power on such matters while Parliament is not in session, subject to the ordinary ordinance conditions.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: National Emergency creates functional centralisation rather than institutional extinction. **Named evidence:** Article 353 authorises Union directions and wider parliamentary law-making, while Article 250 gives State List competence with a six-month post-emergency tail. **Analysis:** national coordination can therefore cross ordinary federal compartments without dissolving State institutions. **Qualification:** extra-area extension under Article 353 is relational and limited by the phrase 'if and in so far as'; it is not an unlimited nationwide consequence of every partial proclamation.

EVIDENCE UNIT

Constitution of India, Articles 250 and 353; 42nd Amendment section 49.

PRELIMS TRAP

National Emergency does not automatically dismiss all State ministries or abolish the State List.

MAINS USE

Contrast functional Union dominance under Article 352 with institutional displacement under Article 356.

MINI RECAP

Directions + State-field legislation + continuing States + security-linked extra-area extension + six-month legislative tail.

SESSION 7 - ARTICLE 354, REVENUE DISTRIBUTION AND LEGISLATIVE TERMS

DEFINITION

National Emergency also permits temporary modification of constitutional revenue distribution and statutory extension of legislative terms within strict temporal limits.

VISUAL FIRST

ARTICLE 354 ORDER

Articles 268-279 exceptions/modifications

- |
- +-- only while Article 352 operates
- +-- period cannot pass the financial year in which Emergency ends
- +-- order laid before each House

TERM EXTENSION BY PARLIAMENTARY LAW

Lok Sabha / State Assembly

- |
- +-- maximum one year at a time
- +-- only while Emergency operates
- +-- never beyond six months after cessation.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Emergency finance and tenure rules are authorising powers with outer limits, not automatic suspension of the fiscal Constitution or elections.

MUST-WRITE KEYWORDS

Article 354; Articles 268-279; financial year; laid before Parliament; Article 83(2); Article 172(1); one year at a time; six-month outer limit

CORE TEACHING

- [FACT] Article 354 permits the President to direct that Articles 268-279 operate with specified exceptions or modifications during the Emergency.
- [FACT] The order cannot extend beyond the financial year in which the proclamation ceases and must be laid before each House as soon as may be.
- [FACT] Parliament may by law extend the Lok Sabha term and State Assembly terms for no more than one year at a time while a National Emergency operates.
- [FACT] No such extension may continue beyond six months after the Emergency ends. Extension is legislative and deliberate; the proclamation does not itself lengthen every House.
- [EXAMPLE] The Fifth Lok Sabha elected in 1971 continued until 1977 through emergency-era extensions.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: the Constitution permits fiscal and electoral continuity without granting an unbounded emergency pause.

Named evidence: Article 354 confines revenue-distribution modification to a stated period ending no later than the relevant financial year, while Articles 83(2) and 172(1) permit only one-year-at-a-time term extensions with a six-month post-emergency ceiling. **Analysis:** these limits support continuity during crisis while preserving return to ordinary federal finance and elections. **Qualification:** neither revenue modification nor term extension happens automatically.

EVIDENCE UNIT

Constitution of India, Articles 83(2), 172(1) and 354; *Minerva Mills* considered the emergency-dependent Lok Sabha extension.

PRELIMS TRAP

Do not say an Article 352 proclamation itself extends the Lok Sabha or every Assembly.

MAINS USE

Add these often-missed fiscal and tenure effects to make a National Emergency answer complete.

MINI RECAP

Revenue order is temporary and laid before Parliament; term extension needs law, one year at a time, ending within six months of cessation.

SESSION 8 - ARTICLES 358 AND 359 AFTER THE 44TH AMENDMENT

DEFINITION

Article 358 automatically relaxes Article 19 constraints for qualifying emergency-related law/action only during war or external-aggression Emergency; Article 359 requires a presidential order suspending the court-enforcement route for specified Part III rights, never Articles 20 and 21.

VISUAL FIRST

TEST	ARTICLE 358	ARTICLE 359
Trigger	war/external aggression	any Article 352 ground
Activation	automatic	Presidential Order
Right	Article 19 only	named Part III rights
20 and 21	never its subject	expressly protected
Legal effect	Art 19 does not restrict	court-enforcement route
Nexus/recital	required	required for 359(1A) shield
Territory	proclamation + security	order: whole/part; extension needs security necessity
After cessation	inconsistent law loses prospective shield	law loses prospective shield; past acts/omissions preserved.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

The post-44th rights regime replaces the myth of blanket suspension with two textually different, nexus-limited mechanisms.

MUST-WRITE KEYWORDS

Article 358; Article 19; war or external aggression; Article 359 order; enforcement not extinction; Articles 20 and 21; recital; emergency nexus

CORE TEACHING

- [FACT] Article 358 applies only while a proclamation declares threat by war or external aggression. It does not operate for armed rebellion and concerns Article 19 alone.
- [FACT] Article 358(2) denies protection to a law lacking the recital that it relates to the proclamation, or to executive action not taken under a law containing that recital.
- [FACT] Article 359(1) permits the President to suspend the right to move any court for enforcement of rights named in the order and to suspend pending proceedings for the stated period. The rights themselves are not deleted from Part III.
- [FACT] Articles 20 and 21 are excluded. Article 359(1A)-(1B) also uses a law/action shield with a proclamation recital and nexus requirement.
- [FACT] An Article 359 order may cover whole or part. If the Emergency operates only in part, extension elsewhere requires presidential satisfaction that related activities threaten the security of India or part and that extension is

necessary.

- [FACT] On cessation, a law protected only by Article 358 or 359(1A) loses effect prospectively to the extent of ordinary Part III incompetency, while things done or omitted during the protected period remain addressed by the survival clause.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Articles 358 and 359 protect only constitutionally connected emergency action, not unrelated illegality. **Named evidence:** Articles 358(2) and 359(1B) require a proclamation recital and confine executive protection to action under such a law; Article 359 also excludes Articles 20 and 21. **Analysis:** Parliament and the executive must identify the emergency nexus rather than invoke crisis as a general defence. **Qualification:** Article 359 restricts the enforcement route named in the order, while Article 358 directly changes Article 19's constraint for its narrower trigger.

EVIDENCE UNIT

Constitution of India, Articles 358 and 359 as amended by sections 39-40 of the 44th Amendment.

PRELIMS TRAP

Never write 'all Fundamental Rights are suspended'; distinguish rights, enforcement, trigger, order, recital and territory.

MAINS USE

A comparison table with trigger, activation, right, effect and safeguard usually captures full marks.

MINI RECAP

358 = automatic Article 19 rule for external Emergency; 359 = specified enforcement order; both are nexus-limited; 20/21 stay enforceable.

SESSION 9 - ADM JABALPUR, KHANNA'S DISSENT AND PUTTASWAMY

DEFINITION

The habeas corpus controversy records the movement from Emergency-era denial of an Article 21 enforcement route to textual and judicial protection of life and personal liberty.

VISUAL FIRST

1975 ARTICLE 359 ORDER

|

ADM JABALPUR (1976) MAJORITY

no locus to seek habeas corpus for Article 21 enforcement

|

JUSTICE H.R. KHANNA DISSENT

liberty is not held solely at executive grace

|

44TH AMENDMENT

Articles 20 and 21 cannot be included in an Article 359 order

|

K.S. PUTTASWAMY (2017), NINE JUDGES

ADM Jabalpur was seriously flawed / wrongly decided and stands overruled.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

India's liberty firewall is both textual and jurisprudential: the 44th Amendment protects Articles 20-21, and *Puttaswamy* rejects *ADM Jabalpur*.

MUST-WRITE KEYWORDS

habeas corpus; ADM Jabalpur (1976); H.R. Khanna; Article 21; 44th Amendment; K.S. Puttaswamy (2017); overruled

CORE TEACHING

- [FACT] During the 1975 Emergency, the *ADM Jabalpur* majority held that a detainee lacked locus to seek judicial enforcement of Article 21 while the relevant Article 359 order operated.

- [FACT] Justice H.R. Khanna dissented from the proposition that life and personal liberty depended entirely on executive permission during the order.
- [FACT] The 44th Amendment expressly excluded Articles 20 and 21 from Article 359.
- [FACT] The nine-judge *K.S. Puttaswamy* judgment in 2017 described *ADM Jabalpur* as seriously flawed and held it wrongly decided; the majority ruling stands overruled.
- [LIMIT] The historical case should explain institutional failure and reform, not be cited as current authority for executive detention beyond courts.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: the constitutional response to *ADM Jabalpur* closes the central liberty failure of 1975. **Named evidence:** Justice Khanna's dissent was followed by the 44th Amendment's exclusion of Articles 20 and 21 and *Puttaswamy*'s express overruling of the majority. **Analysis:** personal liberty now has both an express emergency-text shield and authoritative judicial repudiation of executive finality. **Qualification:** other specified rights may still face an Article 359 enforcement order, so the wider civil-liberties risk has not vanished.

EVIDENCE UNIT

ADM Jabalpur v Shivkant Shukla (1976); Constitution 44th Amendment; *K.S. Puttaswamy v Union of India* (2017), official Supreme Court judgment.

PRELIMS TRAP

Do not cite the *ADM Jabalpur* majority as good law or say Article 21 may still be placed in an Article 359 order.

MAINS USE

Use this line to demonstrate how constitutional text and judicial doctrine can jointly correct institutional failure.

MINI RECAP

1976 denial -> Khanna dissent -> 44th textual shield -> 2017 overruling.

SESSION 10 - ARTICLES 355, 365 AND THE ARTICLE 356 THRESHOLD

DEFINITION

Article 356 addresses a situation in which State government cannot be carried on according to the Constitution; Articles 355 and 365 supply context or possible material but do not mechanically produce President's Rule.

VISUAL FIRST

ARTICLE 355 DUTY

protect State from external aggression/internal disturbance
 ensure constitutional government
 |
 +-- preventive assistance / warning / constitutional response

ARTICLE 365

State fails to comply with Union constitutional directions
 |
 +-- President MAY hold that constitutional government cannot continue

ARTICLE 356 THRESHOLD

Governor's report OR otherwise + relevant material
 |
 v
 State government cannot be carried on according to Constitution

NOT ENOUGH ALONE: local attack | law-and-order problem | maladministration |
 policy disagreement | uncertain majority not tested on the floor.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Article 356 is a remedy for constitutional impossibility, not a general Union power to correct every State failure.

MUST-WRITE KEYWORDS

Article 355 duty; external aggression; internal disturbance; Article 365; Governor's report or otherwise; constitutional machinery failure; last resort

CORE TEACHING

- [FACT] Article 355 imposes a Union duty to protect every State against external aggression and internal disturbance and to ensure that State government is carried on according to the Constitution.
- [FACT] Article 356 requires presidential satisfaction, based on a Governor's report or otherwise, that the State government cannot be carried on according to the Constitution.
- [FACT] Under Article 365, non-compliance with constitutional Union directions permits the President to hold that such a situation has arisen; the text is enabling, not an irrebuttable automatic consequence.
- [DISTINCTION] A localised external attack primarily engages protection/security responsibilities and, at the Article 352 level, the grave national-security threshold. It does not by itself prove that elected State government has constitutionally collapsed.
- [DISTINCTION] Serious law-and-order breakdown may justify Union assistance under Article 355 or ordinary law. Mere maladministration, corruption, policy disagreement or political unpopularity does not equal inability to govern according to the Constitution.
- [DISTINCTION] When majority is disputed, a floor test ordinarily supplies the constitutional answer; an adverse Governor assessment cannot replace it.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Articles 355 and 365 cannot be used as automatic shortcuts to Article 356. **Named evidence:** Article 355 states duties, Article 365 permits an inference after failure to obey constitutional directions, and Article 356 separately demands satisfaction that government cannot be constitutionally carried on. **Analysis:** keeping the thresholds distinct protects State electoral autonomy while preserving Union capacity for genuine breakdown. **Qualification:** grave anti-constitutional action, including conduct attacking secular constitutional government, may satisfy Article 356 when supported by relevant material.

EVIDENCE UNIT

Constitution of India, Articles 355, 356 and 365; *S.R. Bommai* (1994).

PRELIMS TRAP

Article 355's use of 'internal disturbance' does not restore that phrase as an Article 352 ground.

MAINS USE

Use a three-step Article 355 -> material -> Article 356 threshold structure, then test alternatives.

MINI RECAP

Duty and possible inference are not proclamation; constitutional breakdown needs relevant material and a last-resort assessment.

SESSION 11 - ARTICLE 356 APPROVAL, DURATION, RENEWAL AND REVOCATION

DEFINITION

President's Rule requires two-month parliamentary approval by simple majority, continues in six-month blocks, ordinarily cannot exceed three years, and faces two extra conditions after one year.

VISUAL FIRST

```
PROCLAMATION (Governor report or otherwise)
|
v
both Houses approve within TWO MONTHS by SIMPLE MAJORITY
|
v
six months from DATE OF ISSUE
|
+-- renew every six months
|
+-- beyond ONE YEAR: BOTH conditions
|   1. Article 352 Emergency operating in whole India or
|   whole / any part of the concerned State
|   2. ECI certifies election difficulty
|
+-- ordinary maximum: THREE YEARS
```

President may revoke or vary by later proclamation; no Article 352-style one-tenth Lok Sabha special-sitting mechanism.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Article 356 combines a lower approval majority with a stricter outer duration and election-linked conditions.

MUST-WRITE KEYWORDS

two months; simple majority; date of issue; six months; beyond one year; National Emergency condition; Election Commission certificate; three years; revocation

CORE TEACHING

- [FACT] Every proclamation must be laid before each House and, unless it revokes an earlier proclamation, ceases after two months without approval.
- [FACT] If Lok Sabha is dissolved, Rajya Sabha approval preserves it only until thirty days after the reconstituted Lok Sabha first sits unless that House approves.
- [FACT] An approved proclamation operates for six months from its date of issue, may be renewed in six-month blocks, and ordinarily cannot exceed three years.
- [FACT] For continuance beyond one year, both Article 356(5) conditions must exist: a National Emergency in force in whole India or whole/part of the State, and Election Commission certification that election difficulty makes continuance necessary.
- [FACT] The President may revoke or vary by later proclamation. Article 356 has no Article 352-style Lok Sabha disapproval and one-tenth-member special-sitting route.
- [LIMIT] Historical Punjab-specific constitutional exceptions do not alter the ordinary present three-year rule.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Article 356 duration is capped and becomes election-justified after one year. **Named evidence:** Article 356(3)-(5) provides two-month simple-majority approval, six-month continuance, a three-year maximum and the joint National Emergency plus ECI-certificate conditions beyond one year. **Analysis:** the design prevents temporary central administration from becoming an indefinite substitute for State elections. **Qualification:** parliamentary approval is necessary but does not immunise an unconstitutional proclamation from judicial review.

EVIDENCE UNIT

Constitution of India, Article 356(2)-(5), including the 44th Amendment safeguards.

PRELIMS TRAP

Do not say ECI certification is required from day one or that Article 356 uses Article 352's special majority.

MAINS USE

Compare approval, duration and revocation with Articles 352 and 360.

MINI RECAP

Two months/simple -> six-month blocks -> two extra conditions after one year -> three-year ordinary maximum -> presidential revocation.

SESSION 12 - ARTICLES 356-357 EFFECTS AND THE HIGH COURT LIMIT

DEFINITION

A valid Article 356 proclamation may displace the State political executive and transfer legislative exercise to Parliament, but it cannot authorise presidential assumption of High Court powers.

VISUAL FIRST

PRESIDENT MAY

assume State executive functions
exercise Governor powers
dismiss CM / Council in practice
declare State legislative powers
exercisable by/under Parliament

PRESIDENT MAY NOT

assume High Court powers
suspend constitutional HC provisions
suspend Fundamental Rights automatically

ARTICLE 357 LEGISLATIVE CHANNEL

Parliament -> confers State legislative power on President
-> may authorise delegation
-> Union duties/powers may be created
-> expenditure from State Consolidated Fund pending sanction

LAW SURVIVAL: continues after Rule until competent authority alters/repeals/amends.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

President's Rule temporarily reallocates political functions while preserving judicial independence and the State's continuing legal identity.

MUST-WRITE KEYWORDS

Article 357; State executive; Parliament's authority; delegation; Consolidated Fund of the State; suspended animation; dissolution; High Court limit; continuing laws

CORE TEACHING

- [FACT] Article 356(1) permits assumption of State governmental functions and Governor powers and declaration that State legislative powers are exercisable by or under Parliament.
- [FACT] The proviso expressly forbids presidential assumption of High Court powers or suspension of constitutional provisions relating to High Courts.
- [FACT] Under Article 357, Parliament may confer State legislative power on the President and authorise further delegation subject to conditions. Parliament or the authorised law-maker may confer Union powers and duties.
- [FACT] The President may authorise expenditure from the State Consolidated Fund while Lok Sabha is not in session pending parliamentary sanction.
- [FACT] Laws made through this route continue after the proclamation ends until a competent legislature or authority alters, repeals or amends them.
- [FACT] The Assembly may be kept in suspended animation or dissolved, but *Bommai* requires irreversible dissolution to await parliamentary approval.
- [LIMIT] Article 356 itself produces no automatic Article 19 or general Fundamental Rights suspension.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Article 356 centralises State political authority without collapsing the State judiciary or legal order. **Named evidence:** Articles 356-357 transfer executive and legislative exercise, permit delegated State law-making and preserve resulting laws, while the Article 356 proviso protects High Court powers. **Analysis:** Union administration is therefore constitutionally channelled rather than equivalent to abolition of Statehood. **Qualification:** dissolution before parliamentary approval risks an irreversible fait accompli and is controlled by *Bommai*.

EVIDENCE UNIT

Constitution of India, Articles 356(1) proviso and 357.

PRELIMS TRAP

The State Assembly is not automatically dissolved, and the President cannot take over the High Court.

MAINS USE

Explain executive, legislative, financial-administration and judicial-limit effects separately.

MINI RECAP

Political executive displaced; legislation channelled through Parliament; High Court protected; laws survive until changed.

SESSION 13 - S.R. BOMMAI: FLOOR TEST, REVIEW, RESTORATION AND BASIC-STRUCTURE BOUNDARIES

DEFINITION

S.R. Bommai v Union of India (1994) transformed Article 356 into a judicially reviewable, floor-tested and remedially reversible constitutional power.

VISUAL FIRST

CENTRE ASSERTS ARTICLE 356

```

|
v
COURT ASKS: relevant material? constitutional purpose? mala fides?
|
+-- majority disputed -> ordinarily test on ASSEMBLY FLOOR
|
+-- before parliamentary approval -> suspend, do not irreversibly dissolve
|
+-- invalid proclamation -> court may restore ministry and Assembly
|
+-- political change at Union != ground to dismiss opposition States
|
+-- federalism + secularism are Basic Structure constraints
```

REVIEW IS REAL, BUT ARTICLE 356 REMAINS AVAILABLE FOR PROVED CONSTITUTIONAL FAILURE.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Bommai constitutionalised political majority, federalism and remedial restoration within Article 356 review.

MUST-WRITE KEYWORDS

S.R. Bommai (1994); relevant material; floor test; suspended animation; judicial review; restoration; secularism; federalism; last resort

CORE TEACHING

- [FACT] The proclamation is judicially reviewable; the Union must place the material supporting satisfaction before the court when validity is properly challenged.
- [FACT] Mala fides or reliance on irrelevant material invalidates the proclamation. Courts examine constitutional legality, not partisan wisdom.

- [FACT] A disputed legislative majority should ordinarily be determined on the House floor, not solely from a Governor's private assessment.
- [FACT] The Assembly should ordinarily remain suspended until parliamentary approval; if the proclamation is invalid, the court may restore the dismissed government and Assembly.
- [FACT] A new Union government cannot dismiss State governments merely because they belong to another political party.
- [FACT] Federalism and secularism are Basic Structure features. Demonstrably anti-secular State conduct can have Article 356 relevance, but the doctrine cannot be used as a partisan slogan.
- [FACT] *Rameshwar Prasad v Union of India* (2006) held the Bihar Assembly dissolution unconstitutional; restoration was not ordered because the election process had advanced.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: *Bommai* protects representative federalism by relocating majority proof from Raj Bhavan to the Assembly.

Named evidence: the judgment requires relevant material, favours a floor test, delays dissolution until parliamentary approval and permits restoration after invalid action. **Analysis:** these rules raise both the evidentiary and remedial cost of partisan dismissal. **Qualification:** the case does not abolish Article 356; genuine constitutional breakdown or anti-secular government action may still justify it on proved material.

EVIDENCE UNIT

S.R. Bommai v Union of India (1994) 3 SCC 1; *Rameshwar Prasad v Union of India* (2006).

PRELIMS TRAP

A floor test is the ordinary majority forum; it is not a rule that every conceivable Article 356 ground must first be put to a confidence vote.

MAINS USE

Go beyond 'misuse declined': show majority doctrine, remedy, federalism and secularism.

MINI RECAP

Review + relevant material + floor test + no premature dissolution + restoration + Basic Structure limits.

SESSION 14 - MISUSE DEBATE, DECLINE AFTER THE MID-1990S AND COMMISSION SAFEGUARDS

DEFINITION

Article 356 became less frequent after the mid-1990s because legal risk, coalition federalism, regional parties and commission-based conventions jointly raised the cost of partisan use.

VISUAL FIRST

EARLIER PATTERN: broad Governor reports + dominant Union party + weak remedy

|
v

LEGAL CHANGE: Bommai review / floor test / restoration risk

POLITICAL CHANGE: coalitions / regional parties / electoral backlash

INSTITUTIONAL NORMS:

SARKARIA -> warning, last resort, objective speaking report, floor test

PUNCHHI -> restraint, localised-response discussion, neutral Governor norms

|
v

LOWER FREQUENCY, NOT ZERO CONTROVERSY

disputes continue around Governors, floor tests, assent and Union-State conflict.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

The decline of Article 356 reflects changed constitutional incentives rather than deletion of the power.

MUST-WRITE KEYWORDS

partisan misuse; mid-1990s; Bommai effect; coalition federalism; regional parties; Sarkaria Commission; Punchhi Commission; prior warning; speaking report

CORE TEACHING

- [FACT] Article 356 was repeatedly criticised for dismissal of opposition-ruled State governments; Ambedkar's 'dead letter' hope became a standard contrast with practice.
- [FACT] *Bommai* increased litigation risk through review, floor-test discipline, delayed dissolution and restoration.
- [ANALYSIS] Coalition Union governments and stronger regional parties made dismissals costlier in Parliament, alliances and State elections.
- [FACT] Sarkaria recommended sparing, last-resort use, prior warning where feasible, objective Governor material and floor testing. Punchhi reinforced restraint and examined more localised responses rather than whole-State displacement.
- [LIMIT] Commission recommendations are persuasive standards and conventions, not self-executing constitutional amendments or binding judgments.
- [CURRENT] President's Rule imposed in Manipur on 13 February 2025 was formally revoked by Gazette S.O. 509(E) on 4 February 2026. This dated example demonstrates that every Article 356 status statement must identify imposition and revocation.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: the post-1994 decline in Article 356 is jointly legal and political. **Named evidence:** *Bommai* created review, floor-test and restoration consequences, while Sarkaria-Punchhi norms and coalition dependence strengthened last-resort expectations. **Analysis:** courts changed the expected legal cost and regionalised politics changed the expected electoral and parliamentary cost. **Qualification:** lower frequency does not eliminate Governor controversy or prove that every later proclamation is valid.

EVIDENCE UNIT

2023 GS-II Q13 route; Sarkaria and Punchhi reports; Gazette of India S.O. 509(E), 4 February 2026.

PRELIMS TRAP

Do not attribute the decline only to *Bommai* or only to coalition politics; UPSC explicitly asks for legal and political factors.

MAINS USE

Organise a 15-marker under Legal, Political and Institutional headings, followed by a continuing-risk qualification.

MINI RECAP

Judicial cost + coalition cost + commission norms -> rarer use; text remains and controversies continue.

SESSION 15 - ARTICLE 360 FINANCIAL EMERGENCY AND ORDINARY FISCAL STRESS

DEFINITION

Article 360 applies when the President is satisfied that the financial stability or credit of India or any part of its territory is threatened; it is not triggered merely by deficit, debt, Article 293 borrowing conditions or a difficult budget.

VISUAL FIRST

ARTICLE 360 THRESHOLD

```
financial stability or credit of India / any part threatened
|
v
Proclamation -> both Houses within TWO MONTHS -> SIMPLE MAJORITY
|
v
NO PERIODIC RENEWAL / NO FIXED MAXIMUM -> President may revoke or vary
|
+-- directions on canons of financial propriety
+-- State salary/allowance reductions
+-- State Money Bills and Article 207 Bills reserved
+-- Union salary reductions, including SC/HC judges
```

NOT ARTICLE 360 BY ITSELF:

ordinary fiscal stress | Article 293 borrowing consent/conditions |
Finance Commission adjustment | RBI/Union budget action | 1991 crisis.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Financial Emergency is a constitutional last-resort command regime, not a label for every episode of fiscal stress.

MUST-WRITE KEYWORDS

Article 360; financial stability or credit; two months; simple majority; indefinite until revocation; canons of financial propriety; Article 207 Bills; judges' salaries; never proclaimed

CORE TEACHING

- [FACT] A proclamation may be varied or revoked, must be laid before both Houses, and ceases after two months unless both Houses approve by simple majority.
- [FACT] The Lok Sabha-dissolution continuity rule allows Rajya Sabha approval plus thirty days after the reconstituted Lok Sabha first sits.
- [FACT] Once approved, the proclamation has no six-month renewal cycle and no fixed maximum; it continues until revoked.
- [FACT] Union executive authority extends to directions requiring States to observe specified canons of financial propriety and other necessary measures.
- [FACT] Directions may reduce salaries and allowances of persons serving a State; require State Money Bills and other Bills governed by Article 207 to be reserved; and reduce salaries of Union personnel, expressly including Supreme Court and High Court judges.
- [FACT] India has never proclaimed a Financial Emergency. The 1991 balance-of-payments crisis was managed through ordinary economic and institutional measures.
- [DISTINCTION] Article 293 concerns State borrowing and possible Union consent or conditions in defined circumstances. It is an ordinary federal-finance control, not proof that Article 360 is in force.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Article 360 is reserved for systemic threat, not ordinary fiscal discipline. **Named evidence:** Article 360 authorises indefinite central directions on financial propriety, salary reductions and reservation of State financial Bills, including the exceptional possibility of reducing constitutional-court judges' salaries. **Analysis:** these consequences are far more centralising than routine Article 293 borrowing conditions or budget correction, explaining the preference for ordinary tools. **Qualification:** non-use does not make the power redundant, but its indefinite duration strengthens the case for proportionality and parliamentary vigilance.

EVIDENCE UNIT

Constitution of India, Article 360; 2018 GS-II Q3; no Financial Emergency proclamation located through 7 September 2026.

PRELIMS TRAP

Neither the 1991 crisis nor State borrowing conditions under Article 293 amounted to Financial Emergency.

MAINS USE

Answer 2018 through threshold -> approval -> directions -> never-used qualified conclusion.

MINI RECAP

Systemic financial threat -> two months/simple -> indefinite until revocation -> drastic directions -> never used; ordinary fiscal tools remain distinct.

SESSION 16 - THREE-EMERGENCY COMPARISON AND THE PROPORTIONALITY LADDER

DEFINITION

A complete emergency answer compares triggers, procedure, duration, institutions, rights and exit, then asks whether a narrower constitutional or ordinary-law response was available.

VISUAL FIRST

TEST	ARTICLE 352	ARTICLE 356	ARTICLE 360
Trigger	security threat by 3 named grounds	State constitutional machinery failure	financial stability/ credit threat
Approval	1 month / special	2 months / simple	2 months / simple
Duration	6-month renewals; no fixed maximum	6-month renewals; 3-year maximum	no renewal cycle; no fixed maximum
Core effect	federal + possible rights consequences	State executive/ legislative displacement	fiscal directions
Rights	358/359 may operate	no direct suspension	no direct suspension
Exit	President + LS route	President	President

PROPORTIONALITY LADDER:

ordinary criminal/security/fiscal law -> assistance/warning -> floor test/
judicial remedy -> targeted constitutional measure -> emergency as last resort.

The visual fixes the subtopic's legal sequence before the detailed explanation.

ANSWER-GRABBING LINE

Emergency power is justified only where the constitutional category fits and a less drastic lawful response cannot adequately meet the failure.

MUST-WRITE KEYWORDS

classification; necessity; proportionality; temporariness; parliamentary accountability; judicial review; civil liberties; federalism; last resort

CORE TEACHING

- [ANALYSIS] Necessity asks whether the crisis requires exceptional coordination; proportionality asks whether the chosen emergency and its effects exceed what is required.

- [FACT] Article 352 alone uses one-month special-majority approval and the Lok Sabha disapproval mechanism; Article 356 alone has the ordinary three-year maximum; Article 360 alone continues after initial approval without periodic renewal.
- [ANALYSIS] Parliamentary approval, reasoned material, protected Articles 20-21, free judicial access, time control and restoration of ordinary government are mutually reinforcing safeguards.
- [ANALYSIS] Political misuse debate focuses on vague threat narratives, partisan State dismissals, rights restriction and normalisation of emergency-style reasoning through ordinary law.
- [LIMIT] Proportionality is an analytical constitutional principle and answer framework; it does not rewrite the express textual grounds or approval rules.

PARAGRAPH MODEL: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: emergency legitimacy depends on calibrated constitutional escalation. **Named evidence:** the 44th Amendment narrows Article 352 and protects liberty, while *Bommai* imposes relevant-material, floor-test and restoration controls on Article 356. **Analysis:** the combined architecture directs government toward the least institutionally destructive response capable of restoring security or constitutional administration. **Qualification:** true war, rebellion, constitutional collapse or systemic financial threat may still require decisive exceptional power.

EVIDENCE UNIT

Part XVIII; 44th Amendment; *Minerva Mills*; *S.R. Bommai*; Sarkaria and Punchhi recommendations.

PRELIMS TRAP

A proportionality argument cannot substitute for proving the exact Article's textual trigger.

MAINS USE

Use this synthesis for federalism, civil-liberties, misuse and reform conclusions.

MINI RECAP

Correct category -> exact threshold -> least drastic adequate response -> approval/review -> protected core -> return to normal government.

BASIC MCQS / REMEDIATION

EXACTLY 32 ORIGINAL MCQS - STRICT ABCD ROTATION

Q1. Article 352 threshold

Which formulation most accurately states the present constitutional threshold for a National Emergency?

- A. A grave emergency whereby the security of India or any part is threatened by war, external aggression or armed rebellion
 B. Any serious disturbance affecting a State
 C. Breakdown of public order in a Union Territory
 D. Financial instability affecting national credit

Answer: A.

Option explanations

- **A:** This option reproduces the three grounds and the indispensable grave-emergency and security-of-India-or-part threshold.
- **B:** A serious disturbance affecting a State may remain an ordinary public-order problem and does not by itself satisfy Article 352.
- **C:** Public order difficulty in a Union Territory is not one of Article 352's three named grounds.
- **D:** Threat to financial stability or credit belongs to Article 360 rather than the national-security proclamation.

Examiner trap: Do not identify Article 352 from a ground word while ignoring the grave-security threshold.

Q2. Imminent danger

A proclamation under Article 352 may be issued before the actual occurrence of the named event when:

- A. a Governor requests preventive action
 B. the President is satisfied that imminent danger of war, external aggression or armed rebellion exists
 C. Parliament passes a simple-majority precautionary resolution
 D. the Supreme Court certifies a likely threat

Answer: B.

Option explanations

- **A:** A Governor has no constitutional veto or initiating certificate in Article 352's imminent-danger explanation.
- **B:** The Explanation expressly permits advance proclamation on presidential satisfaction of imminent danger of one of the three named grounds.
- **C:** Parliamentary approval follows proclamation and uses a special majority, not a preventive simple-majority trigger.
- **D:** Judicial review checks legality later; the Court does not provide the prior threat certification imagined here.

Examiner trap: Imminent danger advances timing; it does not add 'terrorism' or 'internal disturbance' as a fourth ground.

Q3. Territorial floor

Which statement about the territorial operation of Article 352 is constitutionally correct?

A. It must cover at least one complete State B. It can operate only throughout India C. It may cover the whole of India or the part specified, with no State-sized minimum stated in the text D. A partial proclamation requires consent of every affected State

Answer: C.

Option explanations

- **A:** Article 352 does not prescribe a complete-State floor; a specified part is the textual unit.
- **B:** The 42nd Amendment expressly enabled a proclamation confined to part of Indian territory.
- **C:** This reflects the current wording and avoids inventing a minimum territorial size.
- **D:** State consent is not listed as a condition for specifying the territorial operation of a National Emergency.

Examiner trap: Never translate 'such part of the territory' into an unsupported rule that the smallest unit is one State.

Q4. Localised external attack

A cross-border attack concentrated in one State should be analysed first by asking:

A. whether Article 356 automatically applies because only one State is affected B. whether terrorism is always external aggression C. whether the Governor can declare National Emergency D. whether Article 352's grave-security and named-ground threshold is met, while recognising that ordinary security law may suffice

Answer: D.

Option explanations

- **A:** Article 356 concerns constitutional machinery failure, not the mere geography of an attack.
- **B:** Terrorism and external aggression can overlap factually but are not automatic constitutional synonyms.
- **C:** Only the President issues the proclamation after the written Union Cabinet decision; the Governor has no such power.
- **D:** This approach separates legal category, satisfaction threshold and the practical availability of ordinary law.

Examiner trap: The 2008 Mumbai attacks did not produce either an Article 352 or automatic Article 356 proclamation.

Q5. Written Cabinet advice

For issuing or varying an Article 352 proclamation, the Constitution requires:

A. the Union Cabinet's decision communicated to the President in writing B. oral advice from the Prime Minister followed by later ratification C. a resolution of the Council of Ministers including every Minister of State D. prior approval by the National Security Council

Answer: A.

Option explanations

- **A:** Article 352(3) imposes this written collective-decision safeguard and defines Cabinet for the clause.
- **B:** The post-1975 reform was designed precisely to prevent informal or solely prime-ministerial initiation.

- **C:** The clause refers to the Prime Minister and Cabinet-rank ministers, not the entire ministry as described.
- **D:** The National Security Council may advise government politically but is not the constitutional precondition.

Examiner trap: Distinguish the constitutionally defined Union Cabinet from the broader Council of Ministers.

Q6. Approval majority

A resolution approving or continuing a National Emergency requires:

A. two-thirds of total membership B. a majority of total membership and not less than two-thirds of members present and voting C. a simple majority in each House D. ratification by half the States

Answer: B.

Option explanations

- **A:** Two-thirds of total membership is not the formula; the Constitution uses two simultaneous but different limbs.
- **B:** Article 352(6) states both the total-membership majority and the present-and-voting two-thirds requirement.
- **C:** Simple majority governs Articles 356 and 360 approvals, not Article 352.
- **D:** Federal ratification is an Article 368 procedure and has no place in emergency approval.

Examiner trap: Write both limbs of the special majority; never compress it to 'two-thirds majority'.

Q7. Initial approval and dissolution

If Lok Sabha is dissolved during Article 352's one-month approval period and Rajya Sabha approves, the proclamation:

A. immediately becomes permanent B. automatically ends after one month regardless of reconstitution C. can continue until thirty days after the reconstituted Lok Sabha first sits, unless it approves sooner D. must be approved by State legislatures

Answer: C.

Option explanations

- **A:** No emergency proclamation can become permanent through Rajya Sabha approval alone.
- **B:** The dissolution proviso temporarily preserves operation rather than forcing mechanical expiry at one month.
- **C:** This is the exact constitutional bridge protecting the new Lok Sabha's opportunity to decide.
- **D:** State legislatures have no approval role under Article 352.

Examiner trap: The thirty days run from the new Lok Sabha's first sitting, not from the election result or constitution of the House.

Q8. Lok Sabha disapproval

Which Article 352 statement is correct?

A. Rajya Sabha alone can force revocation B. One-tenth of either House can demand a joint sitting C. Disapproval requires the same special majority as approval D. Lok Sabha disapproval by simple majority obliges the President to revoke, and one-tenth of its total members may seek a special sitting

Answer: D.

Option explanations

- **A:** The forced-revocation resolution is constitutionally assigned to the House of the People.
- **B:** Article 352 creates no joint sitting and the one-tenth notice belongs only to Lok Sabha.
- **C:** The special majority governs approval and continuance; disapproval uses ordinary voting logic.
- **D:** This combines Article 352(7)'s mandatory revocation with clause (8)'s fourteen-day special-sitting safeguard.

Examiner trap: Do not transfer Article 352's opposition-triggered special sitting to President's Rule.

Q9. National Emergency duration

Once properly approved, a National Emergency:

A. continues for six months and may be renewed repeatedly for further six-month periods by the same special majority B. continues indefinitely without another parliamentary vote C. has an absolute three-year maximum D. must be

renewed annually by simple majority

Answer: A.

Option explanations

- **A:** Article 352(5) provides the six-month cycle and permits repeated special-majority continuance.
- **B:** Indefinite possible duration is conditional on recurrent approvals, not initial approval alone.
- **C:** The three-year ceiling belongs to Article 356.
- **D:** Neither the period nor the majority described here matches current Article 352.

Examiner trap: Say 'no fixed maximum with valid six-month renewals', not 'automatically indefinite'.

Q10. Article 353 extra-area effect

When a National Emergency operates only in part of India, Article 353 effects may extend to another State:

A. without any security connection B. if and in so far as security is threatened by activities in or related to the proclaimed area C. only after that State's Assembly consents D. only through Article 356

Answer: B.

Option explanations

- **A:** The 42nd Amendment proviso is relational and does not create unbounded spillover.
- **B:** The phrase 'if and in so far as' ties extra-area directions and law-making to a specified security connection.
- **C:** No affected-State consent requirement appears in Article 353's proviso.
- **D:** Article 353 itself supplies this connected-territory effect; constitutional machinery failure need not be alleged.

Examiner trap: A partial proclamation does not mean every Article 353 effect is automatically confined to the drawn boundary or automatically nationwide.

Q11. Article 250 tail

A parliamentary State List law made because Article 352 is in operation ordinarily loses effect, to the extent of the competence problem:

A. on the day of revocation B. after one year C. six months after the Emergency ceases D. only when every State repeals it

Answer: C.

Option explanations

- **A:** The Constitution supplies a post-emergency transition rather than same-day disappearance.
- **B:** One year is the maximum single legislative-term extension, not the Article 250 law tail.
- **C:** The six-month tail permits transition while preserving things previously done or omitted.
- **D:** The law's emergency-based competence does not depend on repeal by all State legislatures.

Examiner trap: Separate the six-month Article 250 tail from the six-month ceiling after cessation for extended legislative terms.

Q12. Article 354

An Article 354 revenue-distribution order:

A. may permanently amend Articles 268-279 B. needs ratification by half the States C. can continue for five years after Emergency D. cannot extend beyond the financial year in which the Emergency ceases and must be laid before Parliament

Answer: D.

Option explanations

- **A:** Article 354 authorises temporary application changes, not permanent textual amendment.
- **B:** The order is presidential and parliamentary-laying based; Article 368 State ratification is irrelevant.
- **C:** The Constitution imposes a much shorter financial-year outer boundary.

- **D:** This option states both the temporal limit and accountability requirement often omitted in answers.

Examiner trap: Do not describe Article 354 as suspension of all Finance Commission or tax-distribution provisions.

Q13. Article 358 trigger

Article 358 currently operates automatically only when Article 352 is based on:

A. war or external aggression B. armed rebellion C. failure of State machinery D. financial instability

Answer: A.

Option explanations

- **A:** The 44th Amendment confined Article 358 to the two external grounds.
- **B:** An armed-rebellion Emergency can support an Article 359 order but does not activate Article 358.
- **C:** President's Rule has no automatic Article 19 consequence.
- **D:** Article 360 contains no Article 358 mechanism.

Examiner trap: External Emergency is shorthand for war/external aggression; do not include armed rebellion.

Q14. Article 358 recital

Post-44th Article 358 protection is unavailable where:

A. the law relates to the proclamation B. the law lacks the required proclamation recital or the executive action is not under a reciting law C. Parliament legislates on the State List D. the proclamation covers only part of India

Answer: B.

Option explanations

- **A:** A genuine emergency-related law with the recital satisfies the textual nexus gateway, subject to the remaining clause.
- **B:** Article 358(2) expressly withholds the shield in these two situations.
- **C:** State List subject matter can fall within emergency competence and does not itself defeat Article 358.
- **D:** Partial territorial operation invokes scope provisos rather than eliminating Article 358 altogether.

Examiner trap: The recital is not decorative drafting; it is a constitutional condition for the shield.

Q15. Article 359 legal effect

An order under Article 359 principally:

A. erases the specified right from Part III B. automatically suspends every pending case C. suspends the right to move courts for enforcement of specified rights and related pending proceedings as the order states D. abolishes High Court writ jurisdiction permanently

Answer: C.

Option explanations

- **A:** The right remains in Part III; the order addresses enforcement access.
- **B:** Only proceedings for enforcement of rights mentioned in the order are affected for its period.
- **C:** This formulation captures both the enforcement route and the bounded effect on pending proceedings.
- **D:** Article 359 neither permanently amends Article 226 nor abolishes High Courts.

Examiner trap: Use 'enforcement suspended as specified', never the loose claim that rights themselves disappear.

Q16. Articles 20 and 21

Which rights may not be included in an Article 359 suspension order?

A. Articles 14 and 15 B. Articles 19 and 22 C. Articles 25 and 26 D. Articles 20 and 21

Answer: D.

Option explanations

- **A:** Equality rights may be named in an order if constitutional conditions are met.
- **B:** Article 19 has its separate Article 358 relationship and Article 22 is not textually excluded from Article 359.

- **C:** Religious-freedom rights are not within the express 20-21 exclusion.
- **D:** The 44th Amendment created this permanent penal-protection and life-liberty firewall.

Examiner trap: Article 21's protection does not mean every other Fundamental Right is automatically enforceable during every order.

Q17. Survival effect

After the relevant Article 358 protection ends, a law inconsistent only because Article 19 ordinarily restricted competence:

A. ceases prospectively to the extent of inconsistency, while past things done or omitted remain addressed by the saving B. is void ab initio for all purposes C. remains permanently immune D. requires a Supreme Court declaration before Article 19 applies again

Answer: A.

Option explanations

- **A:** This reflects the express prospective cessation and past-act saving structure.
- **B:** The constitutional text avoids retrospective erasure of every emergency-period act.
- **C:** Emergency protection is temporary rather than permanent immunity.
- **D:** The constitutional consequence follows from cessation; no special declaratory prerequisite is stated.

Examiner trap: Do not confuse temporary constitutional immunity with permanent validation of the law.

Q18. Minerva Mills review

Which statement best captures *Minerva Mills* on Article 352 review?

A. Courts may freely replace the Cabinet's threat assessment B. Mala fide or wholly extraneous and irrelevant grounds may be reviewed, but courts should not reweigh sufficiency as an appellate security authority C. Parliamentary approval eliminates review D. Every political question is non-justiciable

Answer: B.

Option explanations

- **A:** The judgment expressly warned against entering the political thicket through merits substitution.
- **B:** This states both the real review grounds and the judicial-restraint qualification.
- **C:** Constitutional conditions remain reviewable notwithstanding legislative approval.
- **D:** Political colour does not remove a legal question about constitutional limits from judicial scrutiny.

Examiner trap: Cite *Minerva Mills* narrowly; it did not create a general judicial power to decide national-security policy.

Q19. Article 355

Article 355:

A. itself dismisses a State ministry B. uses 'armed rebellion' instead of 'internal disturbance' C. imposes a Union duty to protect States against external aggression and internal disturbance and ensure constitutional government D. requires special-majority approval

Answer: C.

Option explanations

- **A:** Article 355 states duties and does not itself issue an Article 356 proclamation.
- **B:** The phrase internal disturbance remains in Article 355 despite its removal from Article 352.
- **C:** This option reproduces both protective and constitutional-government limbs.
- **D:** No House-resolution approval process is contained in Article 355.

Examiner trap: The same words can have different constitutional roles: internal disturbance remains in 355 but not 352.

Q20. Article 365

Failure by a State to comply with constitutional Union directions under Article 365:

A. automatically dissolves the Assembly B. automatically proves armed rebellion C. can only be considered by the Supreme Court D. permits the President to hold that Article 356 conditions have arisen, but does not remove the need for constitutional assessment

Answer: D.

Option explanations

- **A:** Assembly status follows a valid Article 356 process and is never the automatic Article 365 consequence.
- **B:** Direction non-compliance and armed rebellion are conceptually and textually different.
- **C:** The President initially assesses the constitutional consequence; later judicial review remains possible.
- **D:** This respects Article 365's enabling wording and the separate Article 356 threshold.

Examiner trap: Treat Article 365 as possible material, not a self-executing proclamation.

Q21. Article 356 trigger

President's Rule may constitutionally rest on:

A. a Governor's report or other relevant material showing State government cannot be carried on according to the Constitution B. mere policy disagreement with the Union C. any serious crime within the State D. a demand by the largest opposition party

Answer: A.

Option explanations

- **A:** Article 356 expressly says 'on receipt of a report from the Governor ... or otherwise' and specifies the constitutional-failure test.
- **B:** Federal political disagreement is not inability to carry on constitutional government.
- **C:** Criminal violence may require policing or Article 355 assistance without displacing elected government.
- **D:** Party demand is not constitutional proof of machinery failure.

Examiner trap: Focus on constitutional impossibility supported by material, not an undesirable administration.

Q22. Article 356 approval

A non-revoking Article 356 proclamation ordinarily needs approval:

A. within one month by special majority B. within two months by simple majority in both Houses C. within six months by joint sitting D. within fourteen days by Lok Sabha alone

Answer: B.

Option explanations

- **A:** This is the Article 352 rule and majority, not Article 356.
- **B:** The two-month/simple-majority combination is the correct President's Rule rule.
- **C:** No joint sitting substitutes for separate approval by both Houses.
- **D:** Fourteen days belongs to the Article 352 special-sitting notice safeguard.

Examiner trap: Pair each emergency with its own window and majority before solving options.

Q23. Beyond one year

Continuation of President's Rule beyond one year ordinarily requires:

A. only a Governor recommendation B. only an Election Commission certificate C. both a qualifying National Emergency in force and ECI certification of election difficulty D. a constitutional amendment

Answer: C.

Option explanations

- **A:** The Governor's position cannot replace the two express Article 356(5) conditions.

- **B:** Certification is necessary but not sufficient; the National Emergency condition must also exist.
- **C:** Both limbs are cumulative and apply at the time the continuance resolution is passed.
- **D:** The Constitution already supplies the extension mechanism; no amendment is needed for a valid case.

Examiner trap: Do not apply the beyond-one-year conditions to the first six-month approval.

Q24. Article 356 maximum

The ordinary present constitutional maximum for one Article 356 proclamation is:

A. one year B. indefinite C. five years D. three years

Answer: D.

Option explanations

- **A:** One year is the point after which extra conditions arise, not the overall maximum.
- **B:** Indefinite continuation belongs to neither ordinary Article 356 nor its renewal structure.
- **C:** Historic Punjab-specific extensions do not state the general current rule.
- **D:** Article 356(4) fixes three years as the ordinary ceiling.

Examiner trap: Avoid converting a historical Punjab exception into the general President's Rule maximum.

Q25. Article 357 law survival

A State law made through Article 357 emergency legislative authority after the proclamation ends:

A. continues until altered, repealed or amended by a competent legislature or authority B. automatically expires after six months C. becomes a constitutional amendment D. must be reenacted by every district

Answer: A.

Option explanations

- **A:** Article 357(2) expressly preserves such law until competent change.
- **B:** The six-month tail applies to Article 250 competence, not Article 357 law survival.
- **C:** Exercise of State legislative power does not transform ordinary law into constitutional text.
- **D:** District reenactment has no constitutional role in preserving a State law.

Examiner trap: Do not import Article 250's post-emergency tail into Article 357.

Q26. High Court limit

During President's Rule:

A. the President may suspend Article 226 B. the President cannot assume High Court powers or suspend constitutional provisions relating to High Courts C. the Chief Justice becomes responsible to Parliament D. all Fundamental Rights automatically cease

Answer: B.

Option explanations

- **A:** Article 356's proviso protects High Court powers rather than authorising their suspension.
- **B:** This is the express judicial boundary on presidential assumption.
- **C:** No such alteration of judicial office or responsibility is created.
- **D:** Article 356 contains no automatic Part III suspension mechanism.

Examiner trap: The High Court proviso is textual, not merely a convention from *Bommai*.

Q27. Bommai floor test

Where legislative majority is disputed, *S.R. Bommai* ordinarily requires determination:

A. through a Governor's interview B. through party affidavits submitted to the Union C. on the floor of the State Assembly D. by the Election Commission

Answer: C.

Option explanations

- **A:** A private constitutional-office assessment lacks the democratic visibility of the House vote.
- **B:** Affidavits can be evidence but are not the ordinary constitutional forum for proving confidence.
- **C:** The floor test protects representative majority and limits subjective reports.
- **D:** The Election Commission administers elections; it does not decide an incumbent ministry's Assembly confidence.

Examiner trap: The floor-test rule answers majority disputes, not every distinct form of constitutional breakdown.

Q28. Bommai remedy

If an Article 356 proclamation is invalidated, *Bommai* supports the proposition that:

A. only damages are available B. parliamentary approval bars relief C. the case becomes moot after dismissal D. the court may restore the dismissed government and Assembly

Answer: D.

Option explanations

- **A:** Constitutional restoration, not merely monetary compensation, addresses the federal-democratic injury.
- **B:** Approval does not erase judicial review or remedial power.
- **C:** Treating dismissal as irreversible would reward an unconstitutional fait accompli.
- **D:** Restoration makes review effective and deters premature dissolution.

Examiner trap: Contrast *Bommai*'s restoration power with *Rameshwar Prasad*, where elections had advanced and restoration was not ordered.

Q29. Financial trigger

Article 360 may be proclaimed when:

A. the financial stability or credit of India or any part of its territory is threatened B. a State exceeds a preferred deficit ratio C. the Union imposes Article 293 borrowing conditions D. the Finance Commission recommends reduced grants

Answer: A.

Option explanations

- **A:** This is the constitutional trigger and applies to India or any part.
- **B:** No numerical deficit rule in Article 360 mechanically activates the proclamation.
- **C:** Article 293 is an ordinary borrowing-control provision and can operate without Financial Emergency.
- **D:** Finance Commission advice does not itself establish the Article 360 threshold.

Examiner trap: A fiscal problem is not a Financial Emergency until the constitutional proclamation threshold is satisfied.

Q30. Financial duration

After proper parliamentary approval, a Financial Emergency:

A. must be renewed every six months B. continues without a periodic renewal requirement until revoked or varied C. ends automatically after one year D. requires State ratification every budget session

Answer: B.

Option explanations

- **A:** Six-month renewal belongs to Articles 352 and 356, though with different majorities.
- **B:** Article 360 contains no renewal cycle or fixed maximum after initial approval.
- **C:** The Constitution provides no one-year automatic expiry.
- **D:** State legislatures do not ratify Article 360 continuance.

Examiner trap: Use 'indefinite until revocation after approval', not 'permanent'.

Q31. Financial Bill reservation

An Article 360 direction may require reservation for presidential consideration of:

A. all ordinary private members' Bills B. only Appropriation Bills of Parliament C. State Money Bills and other State Bills to which Article 207 applies D. Supreme Court rules

Answer: C.

Option explanations

- **A:** Article 360 targets specified State financial legislation, not every private member's Bill.
- **B:** The reservation direction concerns State legislative Bills rather than Union Appropriation Bills.
- **C:** This follows Article 360(4)(a)(ii)'s exact cross-reference to Article 207.
- **D:** Judicial rules are unrelated to the financial-Bill reservation mechanism.

Examiner trap: Say 'Money Bills or other Bills to which Article 207 applies', not every State Bill.

Q32. Financial status and salaries

Which statement is accurate as of 7 September 2026?

A. Article 360 was proclaimed in 1991 B. Judges' salaries can never be affected under Article 360 C. Article 360 is automatically active during a balance-of-payments crisis D. No Financial Emergency has been proclaimed; if validly in force, directions may include salary reductions for Union personnel including Supreme Court and High Court judges

Answer: D.

Option explanations

- **A:** The 1991 crisis was managed without an Article 360 proclamation.
- **B:** Article 360 expressly includes constitutional-court judges within possible Union salary directions.
- **C:** Economic facts alone do not substitute for presidential proclamation and parliamentary approval.
- **D:** This states both the historical status and the exceptional salary consequence.

Examiner trap: Never turn the common phrase 'closest in 1991' into a claim of proclamation or near-proclamation.

PYQS AND ANSWER PRACTICE

ROUTED VERIFIED PYQS

PYQ 1 - UPSC GS-II 2018, Q3 - direct owner

Question: Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force?

10 marks | 150 words

Demand decoding: State the Article 360 threshold, then procedure, effects and a qualified never-used conclusion.

Model solution

Claim: Article 360 is a last-resort response when the President is satisfied that the financial stability or credit of India or any part is threatened.

Evidence: Both Houses must approve within two months by simple majority. Once approved, it continues without periodic renewal until revoked. Union directions may require States to observe canons of financial propriety, reduce salaries of persons serving a State, and reserve State Money Bills or other Article 207 Bills. The President may also reduce Union salaries, including those of Supreme Court and High Court judges.

Analysis: These powers sharply centralise fiscal administration without dismissing State institutions or automatically suspending Fundamental Rights.

Qualification: India has never proclaimed Article 360; ordinary fiscal and borrowing tools have managed crises. Its severity makes necessity, proportionality and parliamentary scrutiny essential.

PYQ 2 - UPSC Prelims 2018, Q53 - direct owner

Question: If the President of India exercises his power as provided under Article 356 of the Constitution in respect of a particular State, then

A. the Assembly of the State is automatically dissolved. B. the powers of the Legislature of that State shall be exercisable by or under the authority of the Parliament. C. Article 19 is suspended in that State. D. the President can make laws relating to that State.

Answer withheld pending official UPSC key.

Solution discipline: Article 356 permits the proclamation to declare State legislative powers exercisable by or under Parliament. The Assembly is not automatically dissolved; Article 19 is not automatically suspended; and presidential State law-making depends on the Article 357 parliamentary-conferral channel.

PYQ 3 - UPSC GS-II 2020, Q11 - supporting / cross-owned

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts.

15 marks | 250 words

Demand decoding: Explain centralising capacity through the named ordinary statutes while expressly distinguishing them from formal Emergency powers.

Model solution

Claim: India's holding-together federation provides Union coordination capacity, but centralisation must rest on the correct legislative source rather than borrowed emergency logic.

Evidence: During COVID-19, the Disaster Management Act enabled national directions while the Epidemic Diseases Act operated substantially through State authorities. The 2020 Farm Acts relied on Concurrent List Entry 33 concerning trade in foodstuffs but affected agriculture and markets associated with State fields; their 2021 repeal reflected political federalism.

Analysis: Uniform crisis coordination can reduce fragmentation, yet implementation burdens and democratic accountability remain distributed. Articles 352, 356 and 360 demonstrate the Constitution's exceptional centralising design, but none was the direct legal basis of the named statutes.

Qualification: Union action must therefore satisfy legislative competence, necessity and consultation. *S.R. Bommai*, judicial review and State electoral power remain counterweights. Unity is best protected when coordination does not erase federal trust.

PYQ 4 - UPSC Prelims 2023, Q77 - supporting route

Question: Consider the following statements:

1. According to the Constitution of India, the Central Government has a duty to protect States from internal disturbances.
2. The Constitution of India exempts the States from providing legal counsel to a person being held for preventive detention.
3. According to the Prevention of Terrorism Act, 2002, confession of the accused before the police cannot be used as evidence.

How many of the above statements are correct?

A. Only one B. Only two C. All three D. None

Answer withheld pending official UPSC key.

Solution discipline: Article 355 supplies the Union duty. Article 22(3) excludes preventive-detention cases from Article 22(1)-(2), including the counsel safeguard. POTA 2002 contained a special admissibility rule for specified police confessions and was repealed in 2004. This PYQ is supporting because preventive-detention and POTA detail is primarily owned by Fundamental Rights/Internal Security.

PYQ 5 - UPSC GS-II 2023, Q13 - direct owner

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since mid 1990s.

15 marks | 250 words

Demand decoding: 'Account for' requires causal explanation under legal, political and institutional heads, not a list of *Bommai* propositions alone.

Model solution

Claim: Article 356 became less frequent because courts changed the legal cost of dismissal and federalised politics changed its survival cost.

Named evidence: *S.R. Bommai* made proclamations reviewable, required relevant material, preferred floor tests, delayed dissolution until parliamentary approval and enabled restoration. *Rameshwar Prasad* later invalidated the Bihar dissolution. Sarkaria and Punchhi promoted warning, speaking Governor reports and last-resort use.

Analysis: Coalition Union governments and powerful regional parties made dismissal of State governments costly in parliamentary alliances and elections. Media and civil-society scrutiny increased reputational risk. These changes jointly discouraged the earlier pattern of partisan proclamations.

Qualification: The text still permits satisfaction on a Governor's report 'or otherwise', and Governor/floor-test disputes continue. The decline therefore reflects disciplined incentives, not repeal or guaranteed compliance.

PYQ 6 - UPSC Prelims 2024, Q74 - supporting route; final official local key held

Question: Which of the following statements are correct about the Constitution of India?

1. Powers of the Municipalities are given in Part IX A of the Constitution.
2. Emergency provisions are given in Part XVIII of the Constitution.
3. Provisions related to the amendment of the Constitution are given in Part XX of the Constitution.

Select the answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 only D. 1, 2 and 3

Answer: D. Official UPSC Set-A key held locally.

Solution discipline: Part IX-A concerns Municipalities, Part XVIII Emergency Provisions and Part XX constitutional amendment.

SIX ORIGINAL MAINS QUESTIONS WITH MODEL ANSWERS

Original Q1 - 10 marks | 150 words

Question: An external attack affecting only one State does not mechanically trigger President's Rule. Explain the correct constitutional analysis.

Model answer (128 words)

Claim: Geography does not determine the emergency category. Article 356 applies only when State government cannot be carried on according to the Constitution.

Named evidence: Article 352 instead addresses a grave emergency whereby the security of India or any part is threatened by war, external aggression or armed rebellion. It permits a proclamation for a specified part and states no State-sized minimum.

Analysis: A localised cross-border attack therefore requires assessment of Article 352's ground and security threshold. Article 355 may support Union protection, while criminal, policing and counter-terrorism law may remain sufficient. Terrorism is not automatically constitutional 'external aggression'.

Qualification: The 2008 Mumbai attacks produced no National Emergency and no automatic Article 356 proclamation. Only independent proof that Maharashtra's constitutional government could not function would engage Article 356.

Original Q2 - 10 marks | 150 words

Question: Differentiate Articles 358 and 359 after the 44th Amendment.

Model answer (140 words)

Claim: Articles 358 and 359 create different, bounded rights consequences rather than a blanket suspension of Part III.

Named evidence: Article 358 operates automatically, concerns Article 19 alone and applies only during war or external-aggression Emergency. Its shield requires an emergency-related recital and covers executive action under such a law. Article 359 needs a presidential order and suspends the right to move courts for enforcement of specified Part III rights and relevant pending proceedings.

Analysis: Article 358 changes Article 19's constraint for a narrow trigger; Article 359 restricts the enforcement route named in the order. Article 359(1A)-(1B) also uses recital and nexus controls.

Qualification: Articles 20 and 21 can never be included after the 44th Amendment. On cessation, protected laws lose prospective immunity to the extent of ordinary incompetency, while past acts remain governed by the saving clauses.

Original Q3 - 15 marks | 250 words

Question: Examine how the 44th Amendment constitutionalised lessons from the 1975-77 Emergency.

Model answer (193 words)

Claim: The 44th Amendment converted the vulnerabilities exposed in 1975 into specific textual safeguards without abolishing emergency power.

Named evidence: The 1975 proclamation used the broad ground 'internal disturbance'. The amendment replaced it with 'armed rebellion', required the Union Cabinet decision in writing, shortened approval to one month and imposed a majority of total membership plus two-thirds present and voting. Six-month renewals and the Lok Sabha disapproval route ended passive continuation. One-tenth of Lok Sabha members can obtain a special sitting within fourteen days.

Rights safeguards were equally direct. Article 358 was confined to war and external aggression and to emergency-related reciting laws and action under them. Article 359 can no longer block enforcement of Articles 20 and 21. The amendment also removed the 38th Amendment's finality clauses, restoring judicial review.

Analysis: Each repair addresses a distinct 1975 failure: vague trigger, personalised initiation, weak approval, restricted liberty and attempted executive finality. *Puttaswamy* later added judicial repudiation of *ADM Jabalpur*.

Qualification: A large parliamentary majority, controlled information, preventive detention and institutional deference can still endanger liberty. The amendment substantially closes the known legal pathways, but Parliament, courts, opposition and media must activate its safeguards.

Original Q4 - 15 marks | 250 words

Question: Assess the constitutional significance of *S.R. Bommai* beyond the decline in frequency of Article 356.

Model answer (182 words)

Claim: *S.R. Bommai* did more than reduce proclamations; it joined representative majority, federalism, secularism and effective remedies within Article 356 doctrine.

Named evidence: The Court made presidential satisfaction judicially reviewable and required relevant material free from mala fides. When majority is disputed, it ordinarily belongs on the Assembly floor. The Assembly should not be irreversibly dissolved before parliamentary approval, and an invalid proclamation may lead to restoration of the ministry and House. Political change at the Union cannot itself justify dismissal of opposition States.

The judgment also treated federalism and secularism as Basic Structure features. Genuine anti-secular State conduct can therefore have Article 356 relevance, but the provision cannot become a partisan weapon.

Analysis: Floor testing protects democratic proof; delayed dissolution prevents a fait accompli; restoration makes review practical rather than declaratory; and Basic Structure reasoning supplies substantive constitutional boundaries. *Rameshwar Prasad* later demonstrated scrutiny of Governor-based predictive material.

Qualification: *Bommai* neither abolishes Article 356 nor requires a floor test for every non-majority form of breakdown. Courts review legality and evidence, while a proved constitutional failure remains remediable under the

text.

Original Q5 - 20 marks | 250 words

Question: Emergency provisions make India temporarily unitary, but not constitutionally non-federal. Critically evaluate.

Model answer (201 words)

Claim: Part XVIII creates functional Union dominance in crisis, but the Constitution, States and judicial limits continue.

Named evidence: Under Article 352, Article 353 expands Union directions and parliamentary law-making; Article 250 enables State List legislation; Article 354 can modify revenue distribution. Yet State governments and legislatures continue. Articles 358-359 create only specified rights effects, with Articles 20-21 protected.

Article 356 produces sharper State-specific displacement: the ministry may be dismissed and legislative power becomes exercisable by or under Parliament. Article 357 channels delegation and preserves resulting laws, while the High Court remains beyond presidential assumption. *S.R. Bommai* adds review, floor testing, delayed dissolution and restoration.

Article 360 centralises fiscal directions, salary reduction and reservation of State financial Bills, but does not itself dissolve State institutions.

Analysis: These provisions temporarily alter the federal distribution so the Union can meet security, constitutional or financial collapse. Parliamentary approval, duration controls and judicial review preserve constitutional continuity.

Qualification: Article 352 and Article 360 can continue without fixed maximum if their distinct requirements are met; political majorities may still misuse crisis narratives. India becomes Union-weighted in operation, not legally unitary in identity. Emergency legitimacy therefore depends on necessity, proportionality and restoration of ordinary federal democracy.

Original Q6 - 20 marks | 250 words

Question: Why has India never proclaimed a Financial Emergency? Does non-use make Article 360 redundant?

Model answer (197 words)

Claim: Article 360's non-use reflects its drastic signalling and distributive consequences, together with effective ordinary fiscal tools; it does not necessarily prove redundancy.

Named evidence: Once approved within two months by simple majority, a Financial Emergency has no periodic renewal requirement. Union directions may impose canons of financial propriety, reduce State and Union salaries, include Supreme Court and High Court judges, and require State Money Bills or other Article 207 Bills to be reserved.

India managed the 1991 balance-of-payments crisis through external assistance, adjustment and reform rather than Article 360. Later stress has been addressed through budgets, RBI measures, Finance Commission transfers, statutory fiscal frameworks and Article 293 borrowing conditions.

Analysis: Proclamation would publicly signal systemic loss of financial stability or credit and would centralise austerity across federal and judicial institutions. Governments therefore prefer calibrated measures that preserve ordinary accountability and market confidence.

Qualification: A collapse defeating normal coordination may still justify a constitutional backstop. Yet indefinite continuation after initial approval creates accountability concerns. Published reasons, periodic legislative review and protection of institutional independence would improve proportionality. Article 360 is best understood as an unused last-resort fire alarm, distinct from routine deficit control or State borrowing consent.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Constitutional dictatorship versus safety-valve

- [FACT] Constituent Assembly critics feared concentration: H.V. Kamath invoked a totalitarian or police-State danger; K.T. Shah described reaction and retrogression; T.T. Krishnamachari warned of constitutional dictatorship; H.N. Kunzru focused on State financial autonomy.
- [FACT] Defenders treated the provisions as survival tools: Alladi Krishnaswami Ayyar used the 'very life-breath' formulation and Mahabir Tyagi the 'safety-valve' metaphor.
- [FACT] Ambedkar explained the Financial Emergency design by reference to the United States' 1933 National Recovery legislation; use this as historical design context, not as a claim that the two constitutional systems are identical.
- [ANALYSIS] The disagreement is not whether crises exist, but whether law can contain the institutions empowered to define them.
- [LIMIT] Quotations are historical arguments, not operative constitutional tests.

Political misuse and constitutional morality

- Dominant-party government, controlled information and a compliant legislature can weaken formal safeguards without formally breaching every procedural step.
- Standard polity texts describe Article 356 as having been used over 125 times, mostly before the mid-1990s; retain the rounded formulation rather than inventing a false-precise current total.
- Federalism limits partisan State dismissal; civil liberties require continuing court access; parliamentary accountability requires reasons and recurring scrutiny.
- Proportionality asks whether the emergency category and resulting measures are suitable, necessary and institutionally no more destructive than required.
- Restoration of ordinary democratic government is the decisive constitutional purpose; normalising emergency reasoning defeats that purpose.

Punchhi's localised-response discussion

- The Punchhi Commission examined whether severe localised breakdown should receive a narrower response rather than displacement of an entire State government.
- [LIMIT] This is a reform recommendation and analytical alternative, not an enacted new constitutional emergency category.

Boundary with adjacent topics

- Topic 13 owns the full normal Union-State relation system; Topic 14 retains only emergency-specific Article 353-357 and Article 365 links.
- Topic 15 owns the President's general office, election, veto, ordinance and pardon; this topic addresses only the President as constitutional actor under Articles 352, 356 and 360.
- Fundamental Rights and preventive-detention doctrine remain detailed in Topic 7; this topic owns the precise Articles 358-359 emergency effect.

CONSOLIDATED REGISTER NOTES

Constitutional classification

- Part XVIII covers Articles 352-360.
- Article 352: grave emergency threatening the security of India or any part through war, external aggression or armed rebellion.
- Article 356: State government cannot be carried on according to the Constitution.
- Article 360: financial stability or credit of India or any part is threatened.
- Classification follows the nature of constitutional failure, not merely geography or political seriousness.

Article 352 threshold and territory

- Exact phrase: **security of India or any part of the territory thereof**.
- May be proclaimed before actual occurrence when imminent danger exists.
- Whole India or the part specified; no minimum State-sized territorial floor.
- Localised external attack does not mechanically trigger Article 356.
- Terrorism is not automatically external aggression; Article 352 requires independent constitutional satisfaction.
- 2008 Mumbai attacks were handled without an Article 352 proclamation; do not rewrite actual practice.

Article 352 procedure

- Union Cabinet decision communicated in writing; PM plus Cabinet-rank ministers for this clause.
- Both Houses within one month.
- Majority of total membership plus two-thirds present and voting.
- Six months from second approving resolution; repeat six-month renewals; no fixed maximum.
- Dissolved Lok Sabha: Rajya Sabha bridge plus thirty days from the new House's first sitting.
- President may vary/revoke.
- Lok Sabha simple-majority disapproval compels revocation.
- One-tenth of Lok Sabha total members may seek special sitting within fourteen days.

National Emergency effects

- Article 353: Union directions to States and expanded parliamentary competence.
- Partial proclamation can have connected extra-area effects only **if and in so far as** security is threatened by related activities.
- Article 250: State List competence; six-month tail after cessation.
- Article 123 ordinances may address temporarily available State-field subjects while Parliament is not in session, subject to ordinary ordinance conditions.
- States and legislatures continue.
- Article 354: temporary Articles 268-279 modification, laid before Parliament, no later than relevant financial year.
- Lok Sabha/Assembly terms: parliamentary law, one year at a time, no more than six months beyond cessation.

Articles 358 and 359

Test	Article 358	Article 359
Trigger	War/external aggression	Any Article 352 ground
Activation	Automatic	Presidential order
Right	Article 19	Named Part III rights except 20/21
Effect	Article 19 does not restrict qualifying law/action	Court-enforcement route and related proceedings suspended as ordered
Nexus	Recital plus action under reciting law	Same for 359(1A) shield

Test	Article 358	Article 359
Territory	Proclamation and linked-security proviso	Whole/part; extension requires linked-security necessity

- Rights are not erased by Article 359.
- Unrelated illegality is not protected.
- On cessation, inconsistent law loses prospective protection; saving clauses preserve prior acts/omissions.
- Articles 20 and 21 remain enforceable.

Liberty and review timeline

- *ADM Jabalpur* (1976): majority denied Article 21 habeas enforcement route; Khanna dissented.
- 44th Amendment: Articles 20/21 excluded from Article 359.
- *K.S. Puttaswamy* (2017): *ADM Jabalpur* wrongly decided and overruled.
- 38th Amendment attempted finality/non-justiciability.
- 44th removed finality clauses.
- *Minerva Mills* permits review for mala fides, absurd/perverse satisfaction and wholly extraneous or irrelevant grounds; no merits substitution.

Exact proclamation and amendment chronology

- 26 October 1962 to 10 January 1968: external aggression.
- 3 December 1971 to 27 March 1977: external aggression.
- 25 June 1975 to 21 March 1977: internal disturbance under the old text.
- 38th Amendment (1975): finality clauses.
- 42nd Amendment (1976): specified-part and connected-territory architecture.
- 42nd Amendment also lengthened the normal Lok Sabha/Assembly term to six years; the 44th restored five years.
- 44th Amendment (1978; relevant changes effective 20 June 1979): democratic and liberty safeguards.

Articles 355, 356, 357 and 365

- Article 355: protect States from external aggression/internal disturbance and ensure constitutional government.
- Article 365: direction breach may support presidential inference; not automatic.
- Article 356: Governor report or otherwise; relevant material; constitutional impossibility.
- Approval within two months by simple majority.
- Six-month blocks; ordinary maximum three years.
- Beyond one year: qualifying National Emergency plus ECI certification.
- Executive assumed; CM/Council displaced; legislative power by/under Parliament.
- Article 357 permits parliamentary conferral/delegation and interim Consolidated Fund expenditure.
- Laws continue until competent alteration/repeal/amendment.
- Assembly not automatically dissolved; High Court powers cannot be assumed; no direct FR suspension.

Bommai and misuse controls

- Judicial review and relevant material.
- Floor test ordinarily decides disputed majority.
- No irreversible dissolution before parliamentary approval.
- Restoration of ministry/Assembly is available.
- Federalism and secularism are Basic Structure boundaries.
- Political change at Union is not a dismissal ground.
- *Rameshwar Prasad*: Bihar dissolution unconstitutional; no restoration after elections advanced.
- Decline after mid-1990s: courts + coalitions + regional parties + scrutiny + Sarkaria/Punchhi norms.

- Misuse history is safely stated as **over 125 uses**, mostly before the mid-1990s, rather than a false-precise total.
- Commissions recommend warning, speaking reports, floor tests and last resort; recommendations are not binding law.
- Manipur Article 356 proclamation of 13 February 2025 revoked by S.O. 509(E) on 4 February 2026.

Article 360

- Threat to financial stability or credit of India or any part.
- Approval within two months by simple majority.
- No periodic renewal or fixed maximum after approval; President may vary/revoke.
- Canons of financial propriety and other necessary directions.
- State salary/allowance reductions.
- State Money Bills and other Article 207 Bills may be reserved.
- Union salary reductions may include Supreme Court and High Court judges.
- Never proclaimed.
- 1991 crisis and Article 293 borrowing controls are not Article 360.

Rapid three-way comparison

Test	352	356	360
Approval	1 month, special	2 months, simple	2 months, simple
Renewal	Every 6 months	Every 6 months	None
Maximum	No fixed maximum	3 years ordinarily	No fixed maximum
Main effect	Security/federal/rights	State machinery	Fiscal directions
FR effect	358/359 possible	None direct	None direct
Forced LS exit	Yes	No	No

PYQ answer routes

- 2018 Financial Emergency: threshold -> procedure -> consequences -> no-use qualification.
- 2018 Article 356 objective: by/under Parliament; key withheld.
- 2020 centralisation: named statutes use ordinary competence, not formal emergency provisions.
- 2023 objective: Article 355, Article 22 and POTA; key withheld.
- 2023 Article 356 decline: legal + political + institutional.
- 2024 Part identification: Part XVIII; official answer D.

Final examiner traps

- Internal disturbance remains in Article 355, not Article 352.
- Imminent danger is timing, not a fourth ground.
- No State-only territorial minimum exists for Article 352.
- Terrorism is not automatically external aggression.
- Article 352 is one month/special; 356 and 360 are two months/simple.
- Article 352 can continue only through six-month renewals.
- Article 356 maximum is three years; extra conditions start beyond one year.
- Article 358 is Article 19 plus external Emergency only.
- Article 359 suspends enforcement as ordered, not rights themselves.
- Articles 20 and 21 remain enforceable.
- Article 356 does not automatically dissolve an Assembly or suspend Fundamental Rights.

- High Court powers cannot be assumed.
- Article 360 has never been proclaimed.
- Article 293 borrowing control is ordinary federal finance, not Financial Emergency.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Three regimes and classification

CENTRAL QUESTION: WHICH CONSTITUTIONAL FAILURE EXISTS?

- security threatened by war/external aggression/armed rebellion -> ARTICLE 352
- State government cannot be constitutionally carried on -> ARTICLE 356
- financial stability/credit threatened -> ARTICLE 360

Part XVIII is constitutional self-defence, not extra-constitutional rule.

METHOD: classify -> threshold -> procedure -> effects -> safeguards -> exit.

ASCII MASTER FLOW - PANEL 2/12: Article 352 threshold and territorial scope

GRAVE EMERGENCY + "security of India or any part of the territory thereof"

- > ground: war | external aggression | armed rebellion
- > actual occurrence not necessary where imminent danger exists
- > proclamation: whole India OR specified part
- > no textual State-only minimum territorial floor

LOCALISED ATTACK: geography does not trigger 356; test 352 threshold, while ordinary security law may suffice. Terrorism != automatic external aggression.

ASCII MASTER FLOW - PANEL 3/12: Article 352 procedure

Union Cabinet decision communicated in writing -> President

- > laid before both Houses -> approval within one month
- > majority of total membership + 2/3 present and voting
- > six months from second resolution -> same-majority renewals

DISSOLVED LS: RS bridge + 30 days from reconstituted LS first sitting

EXIT: President revokes; LS simple-majority disapproval forces revocation;

1/10 LS total membership notice -> special sitting within 14 days.

ASCII MASTER FLOW - PANEL 4/12: History and amendment arc

26 Oct 1962 external aggression -> 10 Jan 1968 revocation

3 Dec 1971 external aggression -> 27 Mar 1977 revocation

25 Jun 1975 internal disturbance -> 21 Mar 1977 revocation

38TH: attempted finality/non-justiciability

42ND: specified-part proclamation + connected extra-area effects

44TH: armed rebellion + Cabinet writing + special majority + LS exit +

358 nexus + 20/21 shield + finality clauses removed.

ASCII MASTER FLOW - PANEL 5/12: Review and federal effects

MINERVA MILLS: Article 352 condition precedent is reviewable for mala fides,

absurd/perverse satisfaction and wholly extraneous/irrelevant grounds.

LIMIT: no judicial reweighing of sufficiency or merits substitution.

ARTICLE 353: Union directions + parliamentary non-Union-field competence.

ARTICLE 250: State List law with six-month post-emergency tail.

ARTICLE 123: ordinance may cover temporarily available State-field competence.

PARTIAL AREA: extra-State effect only "if and in so far as" linked security threat.

ASCII MASTER FLOW - PANEL 6/12: Revenue, terms and rights

ARTICLE 354: modify Articles 268-279 temporarily; order laid before Parliament; not beyond financial year in which Emergency ceases.

TERMS: Parliament may extend LS/Assembly one year at a time; never beyond six months after cessation.

ARTICLE 358: automatic Article 19 rule; war/external aggression; recital/nexus.

ARTICLE 359: presidential enforcement order; specified rights/area/period; Articles 20 and 21 excluded; rights not textually erased.

ASCII MASTER FLOW - PANEL 7/12: Liberty correction

1975 order -> ADM JABALPUR (1976) majority denies Article 21 habeas route

-> JUSTICE H.R. KHANNA dissent protects liberty principle

-> 44TH AMENDMENT excludes Articles 20 and 21

-> K.S. PUTTASWAMY (2017) holds majority wrongly decided and overruled

CURRENT RULE: 20/21 remain enforceable; ADM Jabalpur is warning, not authority.

ASCII MASTER FLOW - PANEL 8/12: Articles 355, 365 and 356 trigger

ARTICLE 355: Union duty - protection + constitutional government

ARTICLE 365: direction breach may support an inference; never automatic

ARTICLE 356: Governor report OR otherwise + relevant material ->

government cannot be carried on according to Constitution

NOT ENOUGH ALONE: local attack | law/order failure | maladministration |

policy disagreement | untested majority claim

LAST RESORT: assistance/warning/floor test where feasible.

ASCII MASTER FLOW - PANEL 9/12: Article 356 procedure and effects

APPROVAL: two months, simple majority

CONTINUANCE: six months from issue; renew every six months; max three years

BEYOND ONE YEAR: qualifying 352 Emergency + ECI election-difficulty certificate

EFFECTS: State executive assumed; ministry displaced; legislative power by/under

Parliament; Article 357 delegation/expenditure; laws continue until changed

LIMITS: Assembly not automatically dissolved; High Court cannot be assumed;

no direct Fundamental Rights suspension.

ASCII MASTER FLOW - PANEL 10/12: Bommai and post-1994 restraint

S.R. BOMMAI: review | relevant material | floor test | no premature

dissolution | restoration | federalism | secularism | no partisan dismissal

RAMESHWAR PRASAD: Bihar dissolution invalid; no restoration after elections advanced

DECLINE: legal risk + coalition dependence + regional parties + scrutiny

SARKARIA/PUNCHHI: warning, speaking report, floor test, last resort;

recommendations guide but are not binding law.

MANIPUR: 13 Feb 2025 proclamation -> revoked 4 Feb 2026 by S.O. 509(E).

ASCII MASTER FLOW - PANEL 11/12: Article 360 and comparison

ARTICLE 360: financial stability/credit of India or part threatened

-> two months, simple majority -> no renewal cycle / no fixed maximum

-> President may vary/revoke

-> financial propriety | State salaries | State Article 207 Bills reserved

-> Union salaries, expressly including SC/HC judges

STATUS: never proclaimed; 1991 and Article 293 borrowing controls are distinct.

352 special/renewable | 356 simple/3-year max | 360 simple/no renewal.

ASCII MASTER FLOW - PANEL 12/12: PYQ route and qualified verdict

2018 GS-II: 360 threshold -> approval -> directions -> never-used verdict
2018 Prelims: legislature by/under Parliament; official key withheld
2020 GS-II: ordinary centralising statutes != formal emergency basis
2023 Prelims: 355 + Article 22 + POTA; official key withheld
2023 GS-II: Bommai + politics + commissions
2024 Prelims: Part XVIII; official key D held
ANSWER: claim -> named Article/case -> mechanism -> analysis -> qualification
VERDICT: exceptional power is legitimate only when necessary, reviewable,
proportionate and directed toward restoration of ordinary democracy.